

LAW (LL.B) MODEL EXAM 2017 WITH ANSWER

1. Which one of the following is a feature of government?

A. It is a political institution that establishes sovereign jurisdiction within defined borders, and exercises authority through a set of permanent institutions which are recognizably public.

B. It is a very complex phenomenon describing the interplay of cultural, political and psychological factors.

C. It is the means through which the authority of the state is brought into operation.

D. All.

E. None.

ANSWER: C

2. Which of these is a defining characteristic of democracy?

A. That the rulers come from a wide range of social backgrounds.

B. That the rulers are directly accountable to the ruled on a regular basis.

C. That the proceedings of the legislative body are televised.

D. That the rulers govern in the interests of the ruled.

E. All.

F. None.

ANSWER: B

3. Which statement best describes a republic?

A. A king or queen rules according to a constitution.

B. One political group or economic class rules over everyone.

C. Priests or religious leaders rule as representatives of divine will.

D. The people elect representatives to make policy decisions for them.

E. All.

F. None.

ANSWER: D

4. Which of the following statement is/was true about the 1987 PDRE Constitution?

A. We saw a shift in the system of government by principally changing the unitary system to a federal structure and also by recognizing the right of people to self-determination.

B. 106 Article draft Constitution had been adopted by the Constituent Assembly

C. Once in Ethiopian history, the public was called for a referendum to vote on the draft constitution that was discussed by the public and revised by the Commission.

D. The first parliament was introduced to the country with two chambers.

E. All.

F. None.

ANSWER: C

5. Which one of the following is incorrect about the function of the Constitution?

A. Constitutions can declare and define the boundaries of the political community.

B. Constitutions can express the identity and values of a national community.

C. Constitutions can declare and define the nature and authority of the political community.

D. Constitutions can establish and regulate the political institutions of the community.

E. All.

F. None.

ANSWER: F

6. A stage of constitutional making that has a purpose of confirming others in their errors through a democratic handling of talks and exchange of ideas and further allows for opinions to be changed by conference in around table is best expressed as?

A. Initiation of a constitutional draft stage.

B. Deliberation stage.

- C. Adaptation stage.
- D. Promulgation stage.
- E. All.
- F. None.

ANSWER: B

7. One of the following is not likely to be the concern of public international law.

A. A UN Diplomat who is a national of a member of the United Nations is assassinated in a State which was not member of the United Nations.

B. State A gives arms and other material support to a rebel group that is fighting to topple the government in State B.

C. Nationals of State D were unlawfully arrested in State F and the government of State D wants to take military action to free them.

D. After a vessel (ship) belonging to State A collided in the high seas with a ship belonging to State B leading the death of several nationals of State A, State A wants to prosecute the captain of the ship that belonged to State B. The captain has B's nationality.

E. None of the above.

ANSWER: E

8. The origin of the international community in its present structure and configuration is usually traced back to one of the following.

A. The Greek City States.

B. The Roman Empire.

C. Ancient Mesopotamia.

D. The Peace of Westphalia (1648).

E. None of the above.

ANSWER: D

9. One of the following statement is not false.

A. There are Resolutions of the UN Security Council that create binding obligations on members of the United Nations.

B. The UN General Assembly Resolutions always reflect customary international law.

C. Resolutions of the UN General Assembly are considered as additional sources of international law and thus binding upon States.

D. Writings of the most highly qualified publicists can serve as a primary and binding source of international law.

E. None of the above.

ANSWER: A

10. Are norms accepted and recognized by the international community of States as a whole as norms from which no derogation is permitted. A treaty would be void if it conflicts with such norms.

A. General Principles of Law.

B. Jus Cogens Norms.

C. Obligations Erga Omnes.

D. Customary International Law.

E. Soft law.

ANSWER: B

11. One of the following scholars, has been widely celebrated, albeit a little exaggeratedly, as the father of international law.

A. Francisco Vitoria.

B. Suarez.

C. Alberico Gentili.

D. Hugo Grotius.

E. Vattel.

ANSWER: D

12. One of the following does not distinguish the international legal system from domestic legal systems.

A. There is no international government that makes the laws.

B. There is no international government with the authority to command states.

- C. There are no international tribunals that can decide on the rights and duties of states.
- D. Individuals and states have formal equality before domestic law and international law respectively.
- E. None of the above.

ANSWER: C

13. Which one of the following is odd?

- A. The Universal Periodic Review.
- B. The Human Rights Committee.
- C. The Human Rights Council.
- D. The UN Special Procedures.

ANSWER: B

14. Which one of the following is true?

- A. Sometimes the obligation imposed on States with respect to economic, social, and cultural rights may have immediate effect.
- B. Non-state actors bear no obligation under human rights law.
- C. The obligation of States towards the realization of human rights is only limited to their national jurisdiction.
- D. All human rights are inviolable and inalienable with no limits.

ANSWER: A

15. Of the following obligations under human rights law, one is largely attributed to economic, social, and cultural rights?

- A. The obligation to protect.
- B. The obligation to respect.
- C. The obligation to fulfil.
- D. The obligation to promote.

ANSWER: C

16. Identify the wrong statement.

A. Instrumentalization and weaponization of human rights for geopolitical interest is becoming a major challenge for maintaining the global human rights architecture.

B. Civil and political rights always presuppose negative obligation.

C. Regionalism and cultural relativism are compromising the universalist notion of human rights.

D. Only the African Charter on Human and Peoples' Rights incorporated all the three generation of human rights.

ANSWER: B

17. Which one of the following is not a collective right?

A. The right to freedom of expression.

B. Cultural rights.

C. The right to self-determination.

D. The right to join a trade union.

ANSWER: A

18. Which one of the following regional human rights instruments plays a pivotal role in recognizing the concept of group rights and the incorporation of socio-economic and cultural rights?

A. The European Social Charter.

B. The European Convention on Human Rights.

C. The African Charter on Human and Peoples' Rights.

D. The American Convention on Human Rights.

ANSWER: C

19. According to the Ethiopian Federal Courts establishment proclamation, one of the following is not purely the jurisdiction of Federal Courts

A. Cases regarding private international law.

B. Cases regarding the enforcement of foreign judgment or decision.

C. Cases involving matters of nationality.

- D. Cases regarding succession.
- E. Cases to which a federal government organ is a party.

ANSWER: D

20. When the case is adjourned to receive the statement of defense of the accused and when the accused failed to appear, one of the following procedure is correct

- A. The court will proceed the case in ex-parte.
- B. The court will close the file.
- C. The court will decide the case automatically without proceeding to further issues.
- D. The accused will join the litigation if he appears in the next adjournment, yet will loss his right to provide statement of defense and documentary evidences.
- E. None of the above.

ANSWER: D

21. Abebe, a resident of Bahir Dar city brought a civil suit (amount of Birr 12,000,000) against Alemu who is a resident of Dessie City at South Wollo High Court. The moment the case was adjourned to receive the statement of defense of Alemu, he asked the court for the intervention Ethiopian Insurance Company and the court gave the permission. Based on the above information, one of the following is true;

- A. Since Insurance company intervened, the case will become Federal matter and the High court will transfer the case to the regional supreme court or close the file due to lack of material jurisdiction.
- B. The court will refer the case to Federal courts in Addis Ababa.
- C. The case remain regional matter as the insurance company intervened after the case is instituted.
- D. The jurisdiction of the court will be decided after asking the opinion of the Insurance company.
- E. All of the above.

ANSWER: C

22. Judicial Jurisdiction of courts will be decided considering the following matters under the Ethiopian civil procedure law

- A. The nationality of the defendant.
- B. The domicile of the defendant.
- C. The doing of the act.
- D. The nationality and domicile of the plaintiff.
- E. All except D.

ANSWER: E

23. Review of Judgment by the court of rendition is possible under the Ethiopian civil Procedure law when

- A. The party who is asking the review proves that judgment was given due to forgery or perjury.
- B. The court of rendition commits basic error of law.
- C. The court gave the judgment without properly evaluating evidences.
- D. One of the litigating party was incapable and nor properly represented by a lawyer.
- E. None of the above.

ANSWER: A

24. Which one of the following alternatives is wrong?

- A. Confessions which are given to the police because of coercion are inadmissible under Ethiopian evidence law.
- B. A corps which is found due to physical coercion on the suspect are not admissible even if they are relevant to the case.
- C. A suspect who confessed his guilt is necessarily punishable.
- D. None of the above.

ANSWER: C

25. Which one of the following is correct about presumptions?

- A. In all presumptions, the beneficiary of the presumed fact should prove a basic fact before presumption takes place.
- B. Presumptions of fact are not presumed by law.
- C. Irrefutable presumptions do not have the effect of shifting the burden of production to another party
- D. Presumption of laws is permissive in nature which can be ignored by the judge as he wishes.

ANSWER: B

26. Which of the following items is false?

- A. Fact in issue is a fact which is alleged by one party and denied by the other.
- B. Relevant fact is any fact which leads to one of the conclusions necessary to the proof or disproof of a fact in issue.
- C. All relevant facts are admissible facts.
- D. All admissible facts are relevant facts.

ANSWER: C

27. Which one of the following is not a justification for exclusion of hearsay evidence?

- A. Absence of oath.
- B. Privilege.
- C. Testimonial infirmities.
- D. Lack of cross-examination.

ANSWER: B

28. Which of the following is true about evidence rules in common law and civil law systems?

- A. In common law systems, the judge is a neutral umpire.
- B. In civil law systems, there are the so-called jury system.

- C. The civil law system is adversarial system of hearing.
- D. None.

ANSWER: A

29. Which of the following is correct about admissibility and relevance of evidence?

- A. All relevant evidences are necessarily admissible.
- B. Evidence law has provided the standard that could be used to determine the relevance or irrelevancy of facts.
- C. In principle, relevant evidences are admissible unless they are excluded by an explicit provision of the law.
- D. Admissibility of evidences is determined based on their probative and disapprobative value.

ANSWER: C

30. Which one of the following is not true about contract of marriage?

- A. It requires form.
- B. It cannot impose obligation on 3rd party.
- C. It is concluded after the date of celebration of the marriage.
- D. A copy of it shall be deposited in office of civil status or court.
- E. None.

ANSWER: C

31. Which one of the following is true about opposition to marriage?

- A. It is submitted at least 15 days before its celebration in either orally or written form.
- B. There is no appeal on approval of the opposition to marriage.
- C. It is submitted to officer of civil status.
- D. It is submitted to Marriage celebration officer.

@abcaccess, Telegram Channel

E. None.

ANSWER: D

32. Marriage is a status means:

- A. Its legal responsibilities flow from the relationship.
- B. Its legal consequences flow from intention of the parties.
- C. The law does not govern the relationship.
- D. It is created by contract.

ANSWER: A

33. What is the status of the relationship between the adopted child and His/her family of origin?

- A. It ceases to exist as soon as an adoption agreement is concluded.
- B. It is not affected by the agreement of adoption.
- C. Its status is to be determined by the terms of the adoption agreement.
- D. Its status is to be determined having regard to the best interest of the child.

ANSWER: D

34. Which one of the following is not an exception for non-observance of period of widowhood?

- A. Birth.
- B. Remarry her former husband.
- C. Medical proof of not being pregnant.
- D. None.

ANSWER: D

35. One of the following is a condition to ascertain paternity through legal presumption?

- A. DNA of the child and the father.

@abcaccess, Telegram Channel

- B. Conception of the child in a legally recognized cohabitation.
- C. Acceptance of the alleged father by the mother of the child.
- D. All.

ANSWER: B

36. The primary motive of an advocate in handling a case is

- A. Attaining justice and liberty of individuals
- B. Winning a case in a court of law
- C. Obtaining as much fee as possible
- D. Appealing the case in which his client loses
- E. All except C

ANSWER: A

37. Which one of the following is not the ground for judges to recuse themselves of their own motion as soon as they are aware of grounds on which the law prohibits them from sitting over the case?

- A. Connection of a judge with parties or
- B. Connection to their advocate
- C. Connection of the judge with a case/ Relation with the matter and
- D. Other grounds like business relation to the parties
- E. None

ANSWER: E

38. Which one of the following is not true about legal ethics?

- A. It is a sub-branch of applied ethics.
- B. It involves specialized extensive training in law.
- C. It is a moral code of conduct to legal professionals.

- D. It involves community service.
- E. None.

ANSWER: E

39. Which one of the following does not affect judicial independence?

- A. Subjecting a judge to a disciplinary measures for simple legal error.
- B. Responsible public criticism.
- C. Appointment of judges.
- D. Promotion of judges.

ANSWER: B

40. If one of the parties to the case is relative of the judge presiding over the case, the presiding judge should.

- A. Decide the case impartially.
- B. Recluse himself from the case.
- C. Order the parties to file the case before other courts.
- D. Require his relative to appear through an advocate.
- E. None.

ANSWER: B

41. The main purpose of requiring license to practice law is

- A. To create a source of revenue for government.
- B. To protect members of the public against sub-standard advocacy service.
- C. To enable few persons to monopolize the practice of law.
- D. To avoid competition in legal profession.

ANSWER: B

42. Where Ato Ayalew, in his will, ordered a legacy in favor of his friend, Adamu, he ordered the legatee to change his religion as a requirement to take the legacy. Which one of the following is true about this legacy?

- A. Adamu can benefit from the legacy only after complying with the requirement.
- B. Adamu can benefit from the legacy even without complying with the requirement.
- C. The will is invalid since it contravenes law and morality.
- D. B and C.
- E. None.

ANSWER: B

43. Balcha bequeathed the only ox he had to Ayana in his first will. Later, however, he made another will through which he bequeathed the same ox to Chaltu. Who is the right beneficiary of the ox?

- A. Both Ayana and Chaltu.
- B. Ayana.
- C. Chaltu.
- D. None of them.
- E. The State.

ANSWER: C

44. one of the following does not in any way result in the lapse of will under the Ethiopian law of succession.

- A. Dissolution of marriage after the will is made.
- B. The death of the legatee before the testator.
- C. The birth of a child after the will is made.
- D. Failure to deposit a public will in a court within seven years.
- E. None.

ANSWER: D

45. Identify a choice that is incorrect about opening of succession?

- A. It shall open after the closure of liquidation.
- B. It shall open just forty days following the death of the deceased.
- C. It shall open at the main residence of the deceased at the time of making a will.
- D. It shall open at the main residence of the legatees and heirs.
- E. All

ANSWER: E

46. Assume that both General Migersa and his son Colonel Gemechu found died in the Northern war in our country in the previous year. Which one of the following is true regarding the succession of General Migersa?

- A. Colonel Gemechu does not have the capacity to succeed since he loses his capacity due to unworthiness.
- B. The descendants of Colonel Gemechu can succeed the succession of General Migersa by representing Colonel Gemechu.
- C. General Migersa's succession is devolved to his heirs excluding Colonel Gemechu and his descendants.
- D. All descendants of General Migersa are called to the succession including Colonel Gemechu.

ANSWER: B

47. Which one of the following is always true about liquidation of succession under the civil code of the empire of Ethiopia?

- A. Acceptance of succession is always irrevocable.
- B. If the funeral expense is exaggerated, it should not be paid even after all other debts are paid.
- C. Partial acceptance and refusal of succession is always impossible.
- D. If the testator fails to appoint liquidator, legatees by universal title are appointed as

@abcaccess, Telegram Channel

liquidators prior to heirs at law.

ANSWER: A

48. Which one of the following attributes enable to differentiate intrinsic elements from accessories.

- A. Physical attachment with the principal always enables us to differentiate them.
- B. Unlike accessories, intrinsic elements are subject to dealings applicable on Principals
- C. Unlike Intrinsic, the nature of the person who destine a thing as accessory matter
- D. All
- E. None

ANSWER: C

49. Which theory of possession is adopted under Ethiopian Property law?

- A. The subjective theory, because, to have effective possession the possessor need to hold the thing with the intention of owning it.
- B. The objective theory; because, effective possession only demand physical control over a thing.
- C. Realist theory; because, once possession is acquired either of the above way it will continue even though either the animus or corpus or both are lost.
- D. All
- E. None

ANSWER: C

50. Which one of the following is recognized as defect in possession Ethiopian property law?

- A. Precarious possession
- B. Clandestine possession
- C. Possession acquired by violence

- D. All
- E. All except C

ANSWER: D

51. Which one of the following statement is wrong?

- A. Possessory action for immovable thing is made if it is in private domain.
- B. Possessory action may use to protect ownership right; in times when proof of title was difficult.
- C. Under the 1960 Civil code of Ethiopia possession is recognized as one type of property right.
- D. None

ANSWER: C

52. Two rich business men Ato "A" and Ato "B" concluded a contract of sale in January 2015. In the contract of sale, Ato "A" sold his factory including its machineries and used cars situated in Bahir Dar to Ato "B" who bought it by a total price of 100 million Birr. Ato "C" who gave one of used cars to the seller to use it for the factory business in 2010 heard the bad news that his car is sold together with the factory. Two months after the delivery of the things sold to the buyer, Ato "C" institute a charge against Ato "B" claiming that one of the cars in the factory belonged to him and demands it back. Ato "B" defended his right over the car claiming that he bought it from Ato "A" as a part of the factory and did not know the fact that the car belonged to a person other than the seller. Based on the above case which of the following statement is valid?

- A. Since the car is accessory in this case, Ato "C" has a better right than Ato "B" to restore his car, based on overt facts of the case.
- B. There is no way Ato "C" could claim the care from Ato "B"
- C. As a special movable thing ownership on car should be attested by title deed, hence, Ato "B" could not be good faith buyer to defend Ato C's claim.
- D. Ato "B" has a better right and burden of prove is imposed on Ato "C".
- E. All except D

ANSWER: D

53. Which one of the following means of acquisition is applicable for corporeal movable and corporeal immovable things?

- A. Occupation
- B. Accession
- C. Usucation
- D. Good faith possession
- E. All

ANSWER: B

54. One of the following is not true about strict liability

- A. Such acts are not wrong in the eyes of reasonable person
- B. Such conducts are not against good usage of the society
- C. It doesn't encompasses intentional acts
- D. None

ANSWER: C

55. One of the following is common features of strict and vicarious liability

- A. Both sources of liabilities provided additional person who will bear the liability.
- B. Absence of fault on the tortfeasor should be necessarily proved.
- C. Both of them relived the wrong doer from liability
- D. All

ANSWER: A

56. Which one of the following statement is incorrect?

- A. Impossibility in the assessment of the exact amount of damage relieves the defendant from the obligation to compensate the victim.
- B. Remedies are sometimes available when defendant's fault is proved regardless of an actual or perceived material damage occurs to the plaintiff's interest.

C. Though the existence of damage is a general and important element of the extra-contractual liability law of Ethiopia, not all types of damage are compensable.

D. None

ANSWER: A

57. One of the following is not a rationale for justifying the need to have strict liability?

A. Difficulty to proof fault

B. The ability to distribute/transfer the risk to society

C. The deep – pocket theory

D. The risk Assumption theory

E. The deterrence theory

ANSWER: E

58. Which one of the following is not among common feature of strict and vicarious liability under the extra-contractual liability law of Ethiopia?

A. Both arise only in certain specific circumstances when the law expressly provides for.

B. In both sources of tort liability fault of the liable person is not required to be proved.

C. Always both sources of liability provide for additional persons who will bear the liability.

D. None of the above

ANSWER: C

59. One of the following is true regarding purpose of compensation for tort liability.

A. To put the victim in pre injurious creditworthiness.

B. To punish the tortfeasor.

C. To put the victim in a position he would have been now had it not been for the injury.

D. All

ANSWER: C

60. Which one of the following injury is not an occupational injury?

- A. When the accident happens while the worker travels using a public transport to carry out the order of his employer away from the normal work place
- B. When the accident happens during the performance of work as a result of natural cause
- C. When the accident happens as a result of terrorist attack during the performance of the work
- D. When the accident happens while a worker travels using a transport vehicle assigned by the employer
- E. A and B

ANSWER: E

61. All of the following assertions are false except;

- A. A worker who has sustained an occupational injury as a result of fault of his employer can claim both through extra-contractual law and labor proclamation at the same time
- B. An employer is always strictly liable when the worker sustains an occupational injury
- C. The total loss of working capacity of a worker to work his previous work is sufficient to say that the disablement of a worker is permanent total disablement
- D. None

ANSWER: D

62. Which of the following element is irrelevant to classify the nature of employment dispute as individual or collective dispute?

- A. Whether the dispute affects the collective interests of workers
- B. Whether the dispute is listed down under the labor proclamation as individual or collective labor dispute
- C. Whether the number of persons involved in the dispute is one or more than one
- D. B and C

ANSWER: D

63. Which of the following is true about probationary employees?

- A. Concluding a probationary agreement is mandatory for civil servant workers unlike workers in the private sector
- B. Probationary employment agreement is not valid unless it's made in writing
- C. Probationary employment agreement is not valid unless attested by two witnesses
- D. The employer can't terminate the employment contract saying that the worker is not fitting to the work unless there is a clear evaluation standard to the position
- E. All

ANSWER: E

64. All of the following are not correct except;

- A. Contract of employment is always concluded for indefinite duration
- B. Employer and worker has a full freedom to determine the duration of their employment regardless of the nature of the work
- C. A worker can bring a legal action before a court of law to make his employment relation for indefinite period
- D. All except C
- E. None

ANSWER: E

65. Which one of the following is odd?

- A. Apprentices
- B. Young worker
- C. The Manager
- D. Female Worker
- E. Worker with disability

F. Foreign worker

ANSWER: C

66. Which one of the following criminal procedure issues can possibly arise in pre-trial, during trial and post-trial phases of a criminal process?

- A. Summons
- B. No case to answer
- C. Search and seizure
- D. Bail
- E. Interrogation

ANSWER: D

67. Which one of the following is a correct assertion in relation to criminal procedure issues?

A. The duration of criminal investigation cannot vary from case to case depending on the complexity and nature of criminal offences.

B. As the law in Ethiopia stands now and contrary to the experience of many national jurisdictions, a petition for habeas corpus is entertained as a criminal procedure issue.

C. Any person suspected of committing any homicide cannot be released on bail under the Ethiopian criminal justice system.

D. A court of law issues an arrest warrant against a criminal suspect when the attendance of the latter is absolutely necessary and the appearance of a criminal suspect before a court is said to be absolutely necessary only where the offence cannot be tried in absentia.

E. As the law stands now in Ethiopia, regional state First Instance courts do not have any inherent criminal jurisdiction to adjudicate criminal offences arising from the Criminal Code of the Federal Democratic of Ethiopia.

ANSWER: E

68. If an accused in a criminal trial objects the admissibility of his confession alleging that it is obtained through torture or coercion which the prosecutor contests, who reasonably ought to bear the burden of proof under the contemporary criminal justice system of Ethiopia?

- A. The Accused.

B. The Prosecutor.

C. Depending on the gravity of the offence in the charge, the court may determine case by case.

D. As the rule holds that he who avers a fact shall bear the burden of proving such fact, it is always the accused.

E. As the Ethiopian criminal litigation system is more of inquisitorial, neither the accused nor the public prosecutor bears any burden of proof.

ANSWER: B

69. Of the following rights, which one is not a component of the right to a fair trial?

A. The right to silence.

B. The right to speedy trial.

C. The right to presumption of innocence.

D. The right to independent and impartial court.

E. The right to be released on probation.

ANSWER: E

70. Which one of the following cannot be validly raised as a ground of preliminary objection under the Criminal Procedure Law of Ethiopia?

A. Unfitness to stand trial.

B. Double jeopardy.

C. Period of limitation.

D. Amnesty.

E. Pendency of same charge in another court.

ANSWER: A

71. In criminal proceedings in Ethiopia, the public prosecutor

A. Can order further criminal investigation to be undertaken by investigative police officers with a view to embarrass the criminal suspect.

@abcaccess, Telegram Channel

- B. May not withdraw any criminal charge once it instituted before a court of law.
- C. May prepare a criminal charge containing a number of counts against an accused.
- D. May disclose the previous conviction of an accused person during trial if the latter attempts to ridicule the testimony of prosecution witnesses during cross-examination.
- E. Can prepare a criminal charge containing alternative counts if, in its assessment of the adequacy of the evidence collected by the police, it found that there is no adequate evidence that may lead into a reasonable prospect of conviction.

ANSWER: C

72. Which of the following is not generally true about John Locke?

- A. For Locke, The state of nature is a perfect freedom and equality.
- B. John Locke's argument is based on a premise that claims human decency.
- C. The state of nature for John Locke is as one of peace in which most men respect the lives, liberties, and estates of others.
- D. In the state of nature men have no any further right, like to judge and punish transgressors of the natural law.
- E. None of the above

ANSWER: D

73. One of the following sentences is not correct about Socrates' speech?

- A. It is unjust to return harm for harm.
- B. It is just to obey the command of god rather than that of a state.
- C. When the laws unjustly treat you, you can respond to them in a similar fashion.
- D. Obey a command as far as it is legal and just.
- E. None of the above

ANSWER: C

74. Among the following statement one is not true about the stoic philosophy?

@abcaccess, Telegram Channel

- A. The Stoics believe in the monism (oneness) of this world.
- B. According to them the basis of knowledge is a material perception of the outside world.
- C. According to Stoics Law is the highest reason, implanted in nature, which commands what ought to be done and forbids the opposite.
- D. Stoicism existed from the life time of its founder Cicero.
- E. None of the above

ANSWER: D

75. The statement which says "...if we can identify the powerful people in a society, along with the instances and processes through which they issue and enforce their imperative wishes, then we will have discovered the essence of law in that society." most likely reflects the idea of?

- A. Legal realism
- B. Imperative school of thought
- C. Sociological school of thought
- D. Historical school of thought
- E. None

ANSWER: B

76. Which of the following is not true about legal realism in general and American realism in particular?

- A. The main concern of the realist movement was the desire to discover how judicial decisions were reached in reality.
- B. Realism attempted to be both practical and pragmatic, rejecting theoretical and analytical approaches to jurisprudential questions.
- C. Realism believed on the centrality of the role of the judge.
- D. Realism tries to understand the nature of law from the point of view of results.
- E. None of the above

ANSWER: E

77. Which of the following statements not correctly describes Dworkin?

- A. Determining what the law is in particular cases inevitably depends on moral-political considerations about what it ought to be.
- B. Evaluative judgments may not partly determine what the law is.
- C. Dworkin's legal theory is not based on a general repudiation of the classical fact-value distinction, as much as it is based on a certain conception of legal reasoning.
- D. Dworkin claimed in addition to rules, law is partly determined by legal principles.
- E. None of the above

ANSWER: B

78. Which of the following is True according to Ethiopia's Criminal Code?

- A. In principle, preparatory acts are punishable
- B. As a matter of principle, a mere attempt to instigate the commission of a criminal act is punishable
- C. In principle, failure to report a crime is punishable.
- D. Instigators and accomplices could be punished for their negligent acts.
- E. The 2005 Criminal Code is applicable in respect of 'measures' although a person is convicted by the repealed law.

ANSWER: E

79. Identify the correct statement.

- A. Under Ethiopia's Criminal Code, there is a need to establish causation (causal relationship) between an illicit act and the harm sustained, for all crimes.
- B. Juridical persons could be liable for all offenses under Ethiopia's Criminal Code.
- C. The principle of 'maximum certainty' of criminal law encourages the formulation of criminal statutes in broad terms.
- D. Under Ethiopia's Criminal Code, the provisions related to subsidiary jurisdiction aim to avoid negative conflict of jurisdiction.

E. An Ethiopian diplomat can be prosecuted in Ethiopia for the illicit act he has committed in a foreign state provided that the act in question is a crime only by a foreign state's law.

ANSWER: D

80. The circumstance where the sentence may be deleted from the judgment register is

- A. Suspension
- B. Parole
- C. Probation
- D. Reinstatement
- E. All

ANSWER: D

81. Mrs. X who is a woman committed consensual sexual intercourse with Mr.Y who is Z's husband. Which of the following is Not True under Ethiopia's Criminal Code?

- A. X cannot be punished for the crime of adultery although she had performed the act without Z's consent.
- B. Y will not be punished for the crime of adultery if he had performed the act with the consent of Z.
- C. Both X and Y cannot be punished if Z has condoned the act after the commission of the act.
- D. All
- E. B and C
- F. None

ANSWER: E

82. X drinks excessive alcohol so that he can get the courage to kill Y. Then X went to Y's house. Then, X killed Y and raped Y's daughter while he was in a state of absolute irresponsibility. Identify the correct statement according to Ethiopia's Criminal Code.

- A. X would be liable for intentional homicide.
- B. X would be liable for negligent homicide.
- C. X would be liable for the crime of rape.
- D. All
- E. A and C
- F. B and C
- G. None

ANSWER: A

83. Identify the correct statement.

- A. If X and Y begin fighting to measure their strength, and Y died in the process, X can raise a 'legitimate defense' argument, as stated in the Ethiopian Criminal Code, to be exempted from criminal punishment.
- B. Ethiopia's Criminal Code seems to recognize both physical and moral coercion to establish a criminal defense based on 'absolute coercion'.
- C. Lawful acts reduce the degree of criminal guilt and help to mitigate the amount of punishment under Ethiopia's Criminal Code.
- D. Under the Ethiopian Criminal Code, there is a situation in which a military superior may be exempted from criminal punishment if he committed a crime for the purpose of securing obedience during a mutiny.
- E. B and D

ANSWER: E

84. All are purposes of taxation but.

- A. Allocation
- B. Regulation
- C. Confiscation
- D. Stabilization

E. None

ANSWER: C

85. All are legal effects of tax evasion but.

A. Investigation

B. Persecution

C. Sentencing guilt & punishment

D. Execution

E. None

ANSWER: B

86. Which one is distinguished?

A. Excise tax

B. Capital gain tax

C. Employment Income Tax

D. Dividend tax

E. None

ANSWER: A

87. Which one is wrong correlation?

A. Excise tax- collected at production & importation

B. Employment income tax- best instance of withholding tax

C. VAT- avoids cascading effect

D. TOT- avoids cascading effect

E. C & D

ANSWER: D

88. Which of the following is truly undesignated government revenue in the FDRE Constitution?

- A. Stump duty.
- B. Corporate Business Income tax.
- C. VAT
- D. Rental Income Tax
- E. Escheat

ANSWER: E

89. All are applicable to VAT but

- A. Tax Crediting.
- B. Loss Carry Forward.
- C. Zero Rating.
- D. Exempted transaction.
- E. A & B.

ANSWER: B

90. Mr. Tewabe agreed to pay Yosef, his son, 10,000 ETB on the condition that the latter score 85 in the national law exit examination. The agreement between Tewabe and his son is not a contract because

- A. A father and his son cannot enter into a contract.
- B. The agreement entails only a unilateral obligation.
- C. The requirement of intentio obligandi is absent.
- D. Yosef assumed no obligation.

ANSWER: C

91. In one of the following situations, a mistake is not grounds for invalidating a contract.

- A. A party donated her house, thinking that he was selling it.
- B. A party sold a house, thinking that he signed a contract of lease.
- C. A party donated his house to Mr. Jawar, thinking that he was donating to Mr. Eskinder.
- D. A party bought a thing from Jerry, thinking he was buying from Mintwab.

ANSWER: D

92. One is beyond the reach of parties to a contract in Ethiopian contract law; which one?

- A. Setting a period of limitation.
- B. Determining the object of a contract.
- C. Determining the way to celebrate their agreement.
- D. Time and place of payment.

ANSWER: A

93. Non-performance of a contract cannot, in any case, result in:

- A. Cancellation.
- B. Specific performance.
- C. Damages.
- D. Imprisonment.

ANSWER: D

94. One is odd compared from the others.

- A. Counter guarantor
- B. Joint guarantor
- C. Plurality of guarantors
- D. Simple guarantor
- E. Secondary guarantor

@abcaccess, Telegram Channel

ANSWER: D

95. The concept of benefit of division is associated with:

- A. Joint guarantee.
- B. Simple guarantee.
- C. Plurality of guarantors.
- D. Joint creditors.

ANSWER: C

96. The revised Commercial Code has expanded the scope of economic activities persons may operate. Some economic activities may render the operator either a trader or non-trader depending on some parameters. Which of the parameters are not relevant for this purpose:

- A. The number of employees
- B. The method of production
- C. The resources used for undertaking the operation
- D. The type of economic sector in which the person is engaged
- E. None.

ANSWER: E

97. Which one of the following is correct about commercial registration and cancellation?

- A. In accurate entries in the commercial register shall not bind the registered person.
- B. Third parties may rely on the defense that they did not know of facts though the facts are already entered in the commercial register.
- C. Facts relating to traders such the minority of the trader and the judgment declaring the trader incapable shall affect the rights of third parties in good faith even though they have not been entered in the commercial register.
- D. When the registering office becomes aware that the trader has ceased to carry on his trade, it shall cancel on its own motion the entries in the commercial register.
- E. All.

ANSWER: D

98. Which one of the following is correct about business in the legal sense of the term as provided in the commercial code.

- A. A trader may operate only one business at a time.
- B. Where a trader operates a business as a lessee, both the lessee and the lessor shall be deemed to be operating a business and are treated as traders.
- C. From the perspective of the classification of property (objects of property) as corporeal vs incorporeal, and movable vs immovable, business is best classified as movable corporeal property.
- D. All except a
- E. None.

ANSWER: E

99. It is conventional to classify business organizations in to partnerships and companies. Which of the following is correct about the distinction between partnerships and companies?

- A. The extended liability of partners for obligations of the partnership as opposed to the case of members in companies
- B. The greater extent to which partners would be allowed to take part in the management of the partnership than in case of members of companies.
- C. The restrictive nature of transferability of interests/shares in the partnership than in companies.
- D. All

ANSWER: D

100. Which one of the following is correct about Limited Liability Partnership (LLP) as envisaged under the revised commercial code?

- A. This form of partnership is available only for those intending to carry out professional service.
- B. Limited Liability Partnership (LLP) may be a partner to another LLP.

@abcaccess, Telegram Channel

C. For damages caused to third parties intentionally or negligently in the course of carrying out the activities of the partnership, the partners other than the partner or employee who caused the damage shall be exempt from liability.

D. All

ANSWER: D

101. Which one of the following issues requires the unanimous vote of all shares carrying voting rights in extraordinary general meeting of shareholder of a share company.

A. Increase of the capital from reserve funds or distributable profits.

B. Change of the nationality of the company.

C. Decision regarding dissolution, conversion, division or merger of the company.

D. All.

E. A and B.

ANSWER: A